

retained experts after defendant refused Plaintiff's §998 offer. These costs are recoverable.

The court has reviewed Plaintiff's depositions costs and finds that the costs were reasonable and necessary for litigation.

Item 8: Witness Fees

Defendant seeks to tax/strike \$11,984.44 in witness fees. Defendant argues, again, that expert witness fees are generally not recoverable. However, as stated above, Plaintiff's expert witness fees incurred after Defendant's rejection of a valid §998 offer are recoverable. Defendant has failed to meet its burden to establish that any of the witness fees sought are unreasonably high. Plaintiff has sufficiently substantiated the reasonableness and veracity of these costs. (See Opp. Flores Decl. §§ 21-23 & Ex. 9).

Item 11: Court Reporter Fees

Code of Civil Procedure Section 1033.5(a)(11) provides for the recovery of "[c]ourt reporter fees as established by statute." (See *also* Cal. Rules Ct., Rule 2.956 [providing that "[i]f the services of an official court reporter are not available for a hearing or trial in a civil case, a party may arrange for the presence of a certified shorthand reporter to serve as an official pro tempore reporter. It is that party's responsibility to pay the reporter's fee for attendance at the proceedings, but the expense may be recoverable as part of the costs, as provided by law"].) The "catchall" of subdivision (c)(4) provides that "[i]tems not mentioned in this section and items assessed upon application may be allowed or denied in the court's discretion" if the prevailing party shows the cost was reasonably necessary to the conduct of the litigation rather than merely convenient or beneficial to its preparation. (Code Civ. Proc., § 1033.5(c).)

Defendant argues that Plaintiff does not identify a statute or order that allows Plaintiff to recover such costs. Also Defendant points out a discrepancy regarding the amount of costs sought.

Plaintiff seeks reimbursement for court reporter fees recoverable by statute, not by transcript costs. "The fees and charges of the certified court shorthand reporter shall be recoverable as taxable costs by the prevailing party as otherwise provided by law." (Gov. Code §68086(d)(2)). Plaintiff has established that Plaintiff subtracted all daily transcript services, transcript costs, and rough drafts from this cost item.

Plaintiff does concede a clerical error and does not object to a reduction of court reporter fees to \$19,547.86.

As such, the court will tax \$51.97 from Plaintiff's requested court reporter fees.

Item 13: Models, Enlargements, and Photocopies

Defendant seeks to tax/strike the \$1,375.43 in costs as excessive and unsubstantiated.

In Plaintiff's opposition, Plaintiff seeks to increase the amount of costs requested from \$1,375.43 to \$1,526.08. The court will not allow the increase as it is untimely.

Code of Civil Procedure Section 1033.5(a)(13) provides for the recovery of "models, the enlargements of exhibits and photocopies of exhibits, and the electronic presentation of exhibits, including costs of rental equipment and electronic formatting, may be allowed if they were reasonably helpful to aid the trier of fact."

The court finds that Plaintiff has established that \$969.42 was a reasonable amount of costs that Plaintiff actually incurred in photocopies of exhibit binders, which were necessary for litigation. (See Opp. Flores Decl., ¶ 27-28 & Ex. 11). Further, Plaintiff spent \$401.06 in copies of medical records that were not used as trial exhibits, but Plaintiff has established that those copies were necessary for litigation. (*Segal v. ASICS America Corp.* (2022) 12 Cal.5th 651, 667 (demonstratives and photocopies are awardable even if not used at trial)).

As such, the court allows costs for this item equal to \$1,375.43.

Item 14: E-Filing Service Fees

Code of Civil Procedure Section 1033.5(a)(13) provides for the recovery of "[f]ees for the electronic filing or service of documents through an electronic filing service provider if a court requires or orders electronic filing or service of documents."

Defendant requests that the court tax all amounts sought under item 14 as unsubstantiated.

In Plaintiff's opposition, the court finds that Plaintiff has substantiated \$1,223.65 of the \$1,773.55 in electronic filing and service fees incurred.

As such, the court taxes \$549.90 of the amount requested in Item 14.

Item 15: Other

Defendant seeks to tax \$188.55 in parking and travel costs, \$62.50 in court record copies, and \$1,477.20 in investigation service of subpoenas.

Code of Civil Procedure Section 1033.5(a)(13) provides for the recovery of: "[a]ny other item that is required to be awarded to the prevailing party pursuant to statute as an incident to prevailing in the action at trial or on appeal."

Having reviewed Plaintiff's opposition, the court finds that \$62.50 and \$1,477.20 are not recoverable costs.

As such, the court taxes \$1,539.70 requested under item 15.
Moving Defendant to give notice.

Plaintiff is ordered to lodge an amended judgment within 10 days of this order, which updates the cost award based on the court's ruling.